

ORDER SHEET
IN THE LAHORE HIGH COURT,
MULTAN BENCH MULTAN
JUDICIAL DEPARTMENT

Writ Petition No. 8270 of 2018

Muhammad Boota
vs
Judge Family Court etc

S.No. of Order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel where necessary
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29.05.2018 Rao Muhammad Zafar, Advocate for petitioner.

Through this constitutional petition, the petitioner has called in question the judgment and decree dated 07.03.2016 passed by the Judge Family Court, Burewala whereby the suit for recovery of maintenance allowance filed by respondent Nos.3 to 9 was decreed.

2. The brief facts of the case are that marriage between the parties was contracted in the year 1997 and from the wedlock, respondent Nos. 4 to 9 were born. The relationship between the parties remained cordial for some time but thereafter became strained which resulted into filing of a suit for recovery of maintenance allowance by respondent Nos. 3 to 9 against the petitioner. The petitioner appeared before the trial court and filed his contesting written statement. After framing of issues, respondent No.3 led her oral and documentary

evidence. During recording of the evidence of respondent No.3, right of the petitioner to cross examine the witnesses of respondent No.3 was closed vide order dated 17.02.2016. Thereafter the learned trial court vide judgment and decree dated 07.03.2016 decreed the suit for recovery of maintenance allowance of the respondent Nos. 3 to 9 at the rate of Rs.2,000/- per month each and the suit to the extent of dowry articles was decreed to the extent of Rs.30,000/- Feeling aggrieved of the said judgment and decree, the petitioner filed an application for setting-aside the same which was dismissed by the trial court vide order dated 26.02.2018. The petitioner challenged the said order by filing an appeal which was also dismissed by the appellate court vide order dated 28.04.2018. Through the instant constitutional petition, the petitioner has called in question the afore referred judgment & decree dated 07.03.2016.

3. Learned counsel for the petitioner has argued that the trial court fell in error while entertaining the application for setting-aside the ex-parte judgment and decree as there is no provision in the family laws for filing such application when the petitioner has not been proceeded against ex-parte during the proceedings of the case, therefore, the orders dated 26.02.2018 and

28.04.2018 are void and against the law and would not be a hindrance in challenging the decree dated 07.03.2016; that valuable right of cross examination of the petitioner has been closed without any legal justification; that respondent No.3 has badly failed to establish on record that the dowry articles were given to her at the time of marriage even then the trial court had decreed the suit without properly appreciating the evidence available on record, therefore, claims that constitutional petition directly filed against the decree would be maintainable.

4. Heard. Record perused.

5. After passing of the order of closure of right to cross examine the respondents' witnesses, as the petitioner had absented himself from the trial court and his right to produce his own evidence was also closed and suit for recovery of maintenance allowance filed by the respondents was decreed, he reasonably believed that he has been proceeded against ex-parte by the court as the matter was decided in his absence. Consequently, there were a number of remedies available to the petitioner against the judgment and decree passed by the trial court; first was to file an appeal against the impugned judgment and decree, if the same was available under the law, secondly in case the appeal was not

competent, then he could have filed a constitutional petition in the alternate; thirdly an application under Section 12(2) CPC was also competent if the grounds provided thereunder were made out and lastly an application for recalling the order and setting aside the judgment and decree passed in his absence for re-hearing of the matter. The petitioner availed the remedy of filing an application for setting-aside the ex-parte judgment and decree. It is by now settled that where more than one remedy is available to a person and he avails one of those remedies for redress of his grievance, he cannot later on abandon that remedy and turnaround to seek another remedy. In the present case, the petitioner having filed an application for setting-aside the ex-parte decree was precluded from availing any other remedy. The application for setting-aside decree was dismissed and after dismissal of his appeal against the said order, the petitioner abandoned the said remedy and filed constitutional petition against the decree dated 07.03.2016 only before this Court without challenging the order passed on his application and appeal filed against the same which is not permissible in view of *doctrine of election* whereby only one remedy can be availed by the petitioner. Reliance in this regard is

placed on **Messrs Shell Pakistan Limited through Legal Affairs Advisor and Attorney vs. Aurangzaib Khan** (2005 PLC 424) wherein it is held as under:

“It is a settled principle of law that where two remedies are available to a person he has option to choose either of the two remedies however once he exercises such option, he could not resort to the other remedy.”

The same principle has been reiterated in the judgment reported as **Raees Ghulam Sarwar through Attorney vs. Mansoor Sadiq Zaidi and 4 others** (PLD 2008 Karachi 458) in the following terms:

“The aggrieved person may either pursue the statutory remedy under the 2002 Ordinance or he may file a civil suit under general law under Section 9 of the CPC. But the aggrieved person will have to choose, under the doctrine of election, one of the said two remedies. In case he opts to pursue the statutory remedy, the remedy under general law i.e. under Section 9 of the CPC would be barred and vice versa.”

6. Consequently, after exercising an option to pursue one remedy by the petitioner, the other remedy would be forfeited. Therefore, this petition to challenge the decree directly would not be maintainable without challenging the orders whereby the application filed by the petitioner

to set-aside ex-parte decree and appeal there-against have concurrently been dismissed.

7. For what has been discussed above, this constitutional petition having no force is accordingly ***dismissed.***

(MUZAMIL AKHTAR SHABIR)
JUDGE

*Naveed **